BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

AT NEW DELHI BENCH-III

CAA-70/(ND)/2022

IN THE MATTER OF:

Sections 230- 232 of the Companies Act, 2013

AND

IN THE MATTER OF:

Jasmine Ispat Private Limited

.... Petitioner-1/Transferor Company 1

AND

Lush Traders Private Limited

....Petitioner-2/ Transferor Company 2

WITH

Just Right Life Limited

(Formerly known as Stepping Stone Construction Private Limited)

.... Petitioner No.3/Transferee Company

AND

Their respective Shareholders and Creditors

Order pronounced on: 03.08.2022

Coram:

SH. BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (Judicial)

SH. BINOD KUMAR SINHA
HON'BLE MEMBER (Technical)

Present:

For Petitioners: Adv. Suman Kumar Jha and Adv. S. Shiva

For Respondents:

03/8/22

ORDER

1. The present second motion joint petition has been filed by M/s Jasmine Ispat Private Limited (hereinafter referred to as the "**Transferor Company 1**"), M/s Lush Traders Private Limited ("**Transferor Company 2**") and M/s Just Right Life Limited (hereinafter referred to as the "**Transferee Company**") seeking approval of the Scheme of Amalgamation of the Transferor and the Transferee Company in accordance with Section 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'the Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules'). The said Scheme of Amalgamation is also annexed to the petition as "Annexure-P/1".

2. Heard Ld. Counsel appearing for the petitioners. Issue notice in terms of Section 230(5) of the Companies Act, 2013 to the statutory authorities i.e., 1. Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi, 2. Registrar of Companies, (NCT of Delhi and Haryana), 3. Official Liquidator (attached to High Court of New Delhi) and 4. Income Tax Department. The Petitioner is directed to serve notice along with a copy of the present petition on the statutory authorities and file proof of service and an affidavit of service. The respective authorities are directed to file the objection, if any, to the said scheme within 2 weeks from the date of receiving of notice.

3. The Petitioner is directed to publish notice of hearing of this petition in Financial Express (English Delhi Edition) and

03/08/22

Jansatta (Hindi Delhi Edition) and file proof of service along with affidavit within two weeks.

4. List the matter on 26.09.2022 for further consideration.

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

-Sd-

(BINOD KUMAR SINHA)
MEMBER (TECHNCIAL)